

U.P. Kshettra Panchayats and Zila Panchayats (Grant-In-Aid) Rules, 1973

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[U.P. Kshettra Panchayats and Zila Panchayats \(Grant-In-Aid\) Rules, 1973](#)

[Rule U-P-KSHETTRA-PANCHAYATS-AND-ZILA-PANCHAYATS-GRANT-IN-AID-RULES-1973 of 1973](#)

[Published on 28 November 1973](#)

[Commenced on 28 November 1973](#)

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[U.P. Kshettra Panchayats and Zila Panchayats \(Grant-In-Aid\) Rules, 1973](#)

[Published vide Notification No. 3095-B/33-129-69, dated 28th November, 1973](#)

[In exercise of the powers under Section 237 of the Uttar Pradesh \[Kshettra Panchayat\]](#)

[\[Substituted by U.P. Act No. 9 of 1994.\]](#)

[and \[Zila Panchayat\]](#)

[\[Substituted by U.P. Act No. 9 of 1994.\]](#)

[Adhiniyam, 1961 \(U. P. Act No. 33 of 1961\), read with clause \(a\) of Section 118 of the said Adhiniyam, the Governor is pleased to make the following rules :](#)

[1.](#)

Short title and commencement.

(1)

These rules may be called the Uttar Pradesh [Kshettra Panchayats]

[Substituted by U.P. Act No. 9 of 1994.]

and [Zila Panchayats]

[Substituted by U.P. Act No. 9 of 1994.]

(Grant-in-Aid) Rules. 1973.

(2)

They shall come into force from the date of their publication in the Gazette.

2.

Definitions.

- In these rules unless the context otherwise requires,-

(i)

"Khand Vikas Adhikari" means the Khand Vikas Adhikari who is in Executive charge of a [Kshettra Panchayats]

[Substituted by U.P. Act No. 9 of 1994.]

;

(ii)

"grant" means any grant sanctioned under these rules;

(iii)

"institution" means an institution which fulfils the requirements of Rule 3 of these rules;

(iv)

"Mukhya Adhikari" means the Mukhya Adhikari or Additional Mukhya Adhikari of a [Zila Panchayat]

[Substituted by U.P. Act No. 9 of 1994.]

.

3.

Qualifications of grantees [Section 237, read with Clause (a) of Section 118].

- A [Zila Panchayat]

[Substituted by U.P. Act No. 9 of 1994.]

or a [Kshettra Panchayat]

[Substituted by U.P. Act No. 9 of 1994.]

may make a grant only to such an institution which fulfils the following requirement-

(a)

it is registered under the Societies Registration Act, 1860;

(b)

its normal activities include such functions as are included in Schedules I and II of the Uttar Pradesh [Kshettra Panchayat]

[Substituted by U.P. Act No. 9 of 1994.]

and [Zila Panchayat]

[Substituted by U.P. Act No. 9 of 1994.]

Adhiniyam, 1961;

(c)

its activities are beneficial to the rural areas within the [Kshettra Panchayat]

[Substituted by U.P. Act No. 9 of 1994.]

or the [Zila Panchayat]

[Substituted by U.P. Act No. 9 of 1994.]

, as the case may be, which makes the grant.

4.

Financial requirements [Section 237, read with Clause (a) of Section 118].

- No [Kshettra Panchayat]

[Substituted by U.P. Act No. 9 of 1994.]

or [Zila Panchayat]

[Substituted by U.P. Act No. 9 of 1994.]

shall make a grant to an institution-

(a)

unless previous provision for the purpose has been made in the Budget;

(b)

unless the sanction of appropriate higher authority, if necessary, has been obtained;

(c)

from such funds as are received by it from the State Government in the shape of grants.

5.

Power of sanction.

- The [Kshettra Panchayat]

[Substituted by U.P. Act No. 9 of 1994.]

or the [Zila Panchayat]

[Substituted by U.P. Act No. 9 of 1994.]

shall be empowered to sanction a grant-

(i)

in the case of a [Kshettra Panchayat]

[Substituted by U.P. Act No. 9 of 1994.]

, up to a limit of Rs. 1,000 in each case; and

(ii)

in the case of a [Zila Panchayat]

[Substituted by U.P. Act No. 9 of 1994.]

, up to a limit of Rs. 2,000 in each case :

Provided that if a [Kshettra Panchayat]

[Substituted by U.P. Act No. 9 of 1994.]

or a [Zila Panchayat]

[Substituted by U.P. Act No. 9 of 1994.]

proposes to make a grant in excess of the above limits, proper sanction of the Commissioner of the Division shall be obtained if the grant does not exceed Rs. 5,000 and if it exceeds Rs. 5,000 proper approval of the State Government shall be obtained.

6.

(1)

The application for a grant shall contain detailed particulars of the scheme or the work for which the grant is required, together with a detailed estimate of the financial requirements for implementing the scheme/work.

(2)

Before an application is placed for consideration before the [Kshettra Panchayat]

[Substituted by U.P. Act No. 9 of 1994.]

[Zila Panchayat]

[Substituted by U.P. Act No. 9 of 1994.]

, there shall be an investigation, in the case of a [Kshettra Panchayat]

[Substituted by U.P. Act No. 9 of 1994.]

by the Khand Vikas Adhikari and in the case of [Zila Panchayat]

[Substituted by U.P. Act No. 9 of 1994.]

by the Head of the concerned department and his report of the investigation shall also be placed before the [Kshettra Panchayat]

[Substituted by U.P. Act No. 9 of 1994.]

[Zila Panchayat]

[Substituted by U.P. Act No. 9 of 1994.]

when the application is taken up for consideration. Such investigation shall cover the following aspects of the proposed scheme/work :

(i)

the necessity for the proposed scheme/work;

(ii)
the extent to which it, will benefit the rural population of the area for which it is drawn up;

(iii)
whether the financial estimate for implementing the scheme/work are correct; and

(iv)
whether the applicant institution has adequate financial resources to contribute its own share towards the implementation of the scheme/work.

(3)
The quantum of grants by a [Kshettra Panchayat]
[Substituted by U.P. Act No. 9 of 1994.]

[Zila Panchayat]
[Substituted by U.P. Act No. 9 of 1994.]
towards a scheme/work shall be determined by the [Kshettra Panchayat]
[Substituted by U.P. Act No. 9 of 1994.]
[Zila Panchayat]
[Substituted by U.P. Act No. 9 of 1994.]

taking into consideration its own resources and the necessity for grants for other schemes/works; but shall not in any case exceed 50 per cent of the total amount required for its implementation. The balance amount shall be contributed by the applicant institution from its own resources.

(4)
If the amount of grant proposed to be given for a scheme/work is within the limits of its own power of sanction under Rule 5 the [Kshettra Panchayat]

[Substituted by U.P. Act No. 9 of 1994.]
[Zila Panchayat]
[Substituted by U.P. Act No. 9 of 1994.]
may sanction the same. In all other cases the [Kshettra Panchayat]
[Substituted by U.P. Act No. 9 of 1994.]
[Zila Panchayat]
[Substituted by U.P. Act No. 9 of 1994.]

shall send the proposal together with its own recommendations to the Commissioner or the State Government, as the case may be, for sanction in the later case such proposals shall be sent to the State Government through the Commissioner. The Commissioner or the Government, as the case may be, may either reject the recommendations of the [Kshettra Panchayat]

[Substituted by U.P. Act No. 9 of 1994.]
[Zila Panchayat]
[Substituted by U.P. Act No. 9 of 1994.]

or accept them with or without such modifications as they may deem fit.

(5)
When the grant has been sanctioned by the appropriate authority it shall be disbursed in one or more equal installments as may be fixed at the time of sanction. After each disbursement, in the case of a [Kshettra Panchayat]

[Substituted by U.P. Act No. 9 of 1994.]
, the Khand Vikas Adhikari, and in the case of a [Zila Panchayat]
[Substituted by U.P. Act No. 9 of 1994.]

, the Head of the concerned department, shall verify whether the amount together with the requisite proportions contribution of the applicant institution has been properly utilised towards the implementation of the scheme/work.

(6)
Before any installment of the grant is disbursed the applicant institution shall execute a written undertaking (on-stamp paper of requisite value) in favour of the [Kshettra Panchayat]
[Substituted by U.P. Act No. 9 of 1994.]
[Zila Panchayat]

[Substituted by U.P. Act No. 9 of 1994.]

to the following effect :

(i)

that it shall maintain proper accounts of all expenditure on the scheme/work for which it has obtained any grant from the [Kshettra Panchayat]

[Substituted by U.P. Act No. 9 of 1994.]

[Zila Panchayat]

[Substituted by U.P. Act No. 9 of 1994.]

in such form as the Khand Vikas Adhikari/Mukhya Adhikari may require;

(ii)

that it shall allow the Khand Vikas Adhikari of the [Kshettra Panchayat]

[Substituted by U.P. Act No. 9 of 1994.]

or the Mukhya Adhikari of the [Zila Panchayat]

[Substituted by U.P. Act No. 9 of 1994.]

or any other person who may be authorised by him in this behalf to examine all the accounts books, vouchers and all other such records maintained by it in connection with the implementation of the scheme/work, as may be required by him;

(iii)

that it shall utilise the grant together with its own contribution only for the purpose for which the grant is sanctioned and for no other purpose or purposes; and

(iv)

that in the event of the grant or any portion thereof being misutilised or being spent on any purpose or purposes other than those mentioned in the application, or in the event of the requisite contribution not being made from its own funds to make up the total amount as mentioned in the application or in the event of any other breach of the provisions of this undertaking it shall be liable to refund to the [Kshettra Panchayat]

[Substituted by U.P. Act No. 9 of 1994.]

[Zila Panchayat]

[Substituted by U.P. Act No. 9 of 1994.]

all such amounts which it has received in the form of grant together with interest at 8 per cent per annum from the date of disbursement of each installment to the date of refund.

(7)

If during the disbursement of the installments of the grant or at any time thereafter it comes to the notice of the [Kshettra Panchayat]

[Substituted by U.P. Act No. 9 of 1994.]

or [Zila Panchayat]

[Substituted by U.P. Act No. 9 of 1994.]

authorities that the amount of the grant has not been properly utilised or that there has been any other breach of any of the provisions of the undertaking mentioned in sub-rule (6) suitable action for the refund of the grant along with interest shall be taken.

Register of Grants

[See Rule 6 (i)]

Name of institution District.....

Recurring/Non-Recurring of Rs. for..... (Scheme/Work)

Number and Date of

order sanctioning the Grant

Date of receipt

Balance if any, after

previous year brought forward

Amount received during

the year

Progressive total

Initial

Number of Voucher and
date

Particulars of
expenditure

Amount of expenditure

Initial

Balance at the close
of the year

Remarks

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